

NOTES

Introduction

1. *Freedom Riders*, directed by Stanley Nelson (Firelight, 2011), <http://www.pbs.org/wgbh/americanexperience/freedomriders/watch>. Emphasis is apparent in tone.
2. A satisfying account would show that the duty to obey the law applies to everyone, covers all laws, and binds citizens to their particular state. See, e.g., Richard Dagger and David Lefkowitz, "Political Obligation," *The Stanford Encyclopedia of Philosophy*, ed. Edward N. Zalta (Fall 2014), <https://plato.stanford.edu/archives/fall2014/entries/political-obligation/>; William A. Edmundson, "State of the Art: The Duty to Obey the Law," *Legal Theory* 10, 4 (2004): 215–259. For a recent, qualified defense of the duty to obey the law, see Samuel Scheffler, "Membership and Political Obligation," *The Journal of Political Philosophy* 26, 1 (2018), 3–23. Scheffler prefaces his associativist argument for political obligation by recognizing that "[t]here may be no duty to obey a seriously unjust law, or the laws of an oppressive state, and even when the state and its laws are reasonably just, duties of obedience may sometimes be overridden by other considerations, and there may be some people who lack any such duty."
3. Henry D. Thoreau, "Resistance to Civil Government," *The Writings of Henry David Thoreau: Reform Papers*, ed. Wendell Glick (Princeton, NJ: Princeton University Press, 1973), 63–90.
4. Mohandas Ghandi, *Young India*, July 22, 1920.
5. Martin Luther King Jr., "Letter from Birmingham City Jail," 1963.
6. Speech featured in *I Am Not Your Negro*, directed by Raoul Peck (Velvet Film, 2016).

7. Stéphane Hessel, *Indignez-vous!* (Montpellier, France: Indigène editions, 2010). The English translation, *Time for Outrage!*, misses the imperative form of the French title—the exhortation to be outraged—and its second-personal address (*vous*).
8. See, e.g., <http://ccle.collectifs.net/> and http://www.liguedh.be/images/PDF/documentation/documents_thematiques/delit-solidarite.pdf (accessed August 20, 2016).
9. Adam Nossiter, “A French Underground Railroad, Moving African Immigrants,” *New York Times* (October 4, 2016), http://www.nytimes.com/2016/10/05/world/europe/france-italy-migrants-smuggling.html?_r=0 (accessed March 21, 2017).
10. Lizzie Dearden, “Iranian Women Call on Western Tourists to Violate Hijab Law to Fight against Oppression,” *The Independent*, April 22, 2016, <http://www.independent.co.uk/news/world/middle-east/iranian-women-in-my-stealthy-freedom-campaign-call-on-western-tourists-to-violate-headscarf-law-to-a6996136.html> (accessed July 5, 2017). See #NoForcedHijab on Twitter and @StealthyFreedom on Facebook and Twitter.
11. The first YouTube video to go viral and inspire others was Manal al-Sharif’s, on May 19, 2011: https://www.youtube.com/watch?v=sowNSH_W2r0 (accessed July 5, 2017). Al-Sharif recently published a memoir: Manal al-Sharif, *Daring to Drive: A Saudi Woman’s Awakening* (New York: Simon and Schuster, 2017).
12. Cited in Neil MacFarquhar and Robert Mackey, “Saudi Women Defy Driving Ban,” *New York Times* (June 17, 2011), <http://thelede.blogs.nytimes.com/2011/06/17/saudi-women-protest-driving-ban> (accessed August 20, 2016).
13. Edward Snowden and Laura Poitras, “‘Nation’ Exclusive: Edward Snowden and Laura Poitras Take on America’s Runaway Surveillance State,” *The Nation* (May 7, 2014), <https://www.thenation.com/article/nation-exclusive-edward-snowden-and-laura-poitras-take-americas-runaway-surveillance/> (accessed July 7, 2017).
14. Cited in Megan Garber, “The Revolutionary Aims of Black Lives Matter,” *The Atlantic* (September 30, 2015), <http://www.theatlantic.com/politics/archive/2015/09/Black-lives-matter-revolution/408160/>.
15. Emmeline Pankhurst to members of The Women’s Social and Political Union, “Votes for Women” (January 10, 1913), <http://www.nationalarchives.gov.uk/documents/education/suffragettes.pdf>.
16. José Bové, Erri de Luca, and Gilles Luneau, *Du sentiment de justice et du devoir de désobéir* (Montpellier, France: Indigène Editions, 2016).
17. See <http://www.faucheurs-volontaires.fr/> (accessed July 6, 2017).
18. Exceptions include Michael Walzer, *Obligations: Essays on War, Disobedience, and Citizenship* (Cambridge, MA: Harvard University Press, 1970); Carole Pateman, *The Problem of Political Obligation: A Critique of Liberal Theory* (Berkeley: University of California Press, 1985); Chaim Gans, *Philosophical*

- Anarchism and Political Disobedience* (Cambridge: Cambridge University Press, 1992); Nancy Hirschmann, *Rethinking Obligation: A Feminist Method for Political Theory* (Ithaca, NY: Cornell University Press, 1992); Kimberley Brownlee, *Conscience and Conviction: The Case for Civil Disobedience* (Oxford: Oxford University Press, 2012); David Lyons, *Confronting Injustice: Moral History and Political Theory* (Oxford: Oxford University Press, 2013); and Tommie Shelby, *Dark Ghettos: Injustice, Dissent, and Reform* (Cambridge, MA: Belknap Press of Harvard University Press, 2016).
19. See A. John Simmons, "The Duty to Obey and Our Natural Moral Duties," in *Is There a Duty to Obey the Law?*, eds. Christopher H. Wellman and A. John Simmons (Cambridge: Cambridge University Press, 2005), 191–193.
 20. Gans, *Philosophical Anarchism and Political Disobedience*, 90.
 21. Kit Wellman, who champions a Samaritan account of the duty to obey the law, confirmed this in conversation. Ronald Dworkin revised his manuscript of *Justice for Hedgehogs* to acknowledge the possibility that dignity in political association (the basis for his definitive account of the duty to obey the law) could sometimes require civil disobedience and even revolution, rather than legal compliance. See Ronald Dworkin, *Justice for Hedgehogs* (Cambridge, MA: Harvard University Press, 2010), 322–323, responding to Susanne Sreedhar and Candice Delmas, "State Legitimacy and Political Obligation in *Justice for Hedgehogs*: The Radical Potential of Dworkinian Dignity," *Boston University Law Review* 90, 2 (2010): 737–758.
 22. See, e.g., Margaret Gilbert, *A Theory of Political Obligation* (Oxford: Oxford University Press, 2006); Philip Soper, *The Ethics of Deference* (Cambridge: Cambridge University Press, 2002).
 23. Joseph Raz, *The Authority of Law: Essays on Law and Morality* (Oxford: Oxford University Press, 1979), chaps. 12–13; William E. Scheuerman, "Whistleblowing as Civil Disobedience: The Case of Edward Snowden," *Philosophy and Social Criticism*, 40, 7 (2014): 609–628.
 24. Pateman, *The Problem of Political Obligation*; Hirschmann, *Rethinking Obligation*.
 25. Carole Pateman, *The Sexual Contract* (Stanford, CA: Stanford University Press, 1988); Iris Marion Young, *Justice and the Politics of Difference* (Princeton, NJ: Princeton University Press, 1990); Lisa Schwartzman, *Challenging Liberalism: Feminism as Political Critique* (University Park: Penn State Press, 2006); Rae Langton, *Sexual Solipsism: Philosophical Essays on Pornography and Objectification* (New York: Oxford University Press, 2009).
 26. Iris Marion Young, "Political Responsibility and Structural Injustice," The Lindley Lecture (University of Kansas, 2003), 3–7.
 27. Ibid.
 28. Marilyn Frye, *The Politics of Reality* (Freedom, CA: Crossing Press, 1983), 4–5.
 29. Young, *Justice and the Politics of Difference*, 39–65.
 30. Shelby, *Dark Ghettos*, 22.

31. Haslanger, "Culture and Critique," *Proceedings of the Aristotelian Society*, Supplementary Volume XCI (2017): 149–173.
32. Leslie Green, *The Authority of the State* (Oxford: Oxford University Press, 1988); and Christopher H. Wellman, "Liberalism, Samaritanism, and Political Legitimacy," *Philosophy and Public Affairs* 25, 3 (1996): 211–237.
33. A. John Simmons, *Justification and Legitimacy: Essays on Rights and Obligations* (Cambridge: Cambridge University Press, 2001), chap. 7.
34. Amartya Sen, *The Idea of Justice* (Cambridge, MA: Belknap Press of Harvard University Press, 2011), 2.
35. See Tom Ginsburg, Daniel Lansberg-Rodriguez, and Mila Versteeg, "When to Overthrow Your Government: The Right to Resist in the World's Constitutions," *UCLA Law Review* 60 (2013): 1184–1260.
36. Kurt Schock, *Civil Resistance Today* (New York: Polity, 2015), 2.
37. A notable exception is Jennet Kirkpatrick, *Uncivil Disobedience: Studies in Violence and Democratic Politics* (Princeton, NJ: Princeton University Press, 2008). But Kirkpatrick uses the term "uncivil disobedience" to designate violence and terrorism deployed in defense of democratic ideals. She studies four instances of uncivil disobedience in American history, which she uses to highlight the importance of the rule of law to limit popular sovereignty: the contemporary militia movement (chapter 1), frontier vigilantism (chapter 2), Southern lynch mobs (chapter 3), and militant abolitionism (chapter 4).
38. Note that experimental research has recently shown that commonsense morality in fact rejects the "ought implies can" principle, as most people formulate judgments about moral obligation independently of considerations about ability. See Wesley Buckwalter and John Turri, "Inability and Obligation in Moral Judgment," *PLoS ONE* 10, 8 (2015): e0136589.
39. I thank Robin Celikates for pressing me on this issue.
40. Indeed as William Edmundson stresses, a moral requirement entails the permissibility of some enforcement measure, though the social enforcement of morality is itself limited by moral constraints. See William A. Edmundson, "Civility as Political Constraint," *Res Publica* 8, 3 (2002): 217–229.

Chapter 1

1. See, e.g., Linda Ford, "Alice Paul and the Politics of Nonviolent Protest," in *Votes for Women: The Struggle for Suffrage Revisited*, ed. Jean H. Baker (New York: Oxford University Press, 2002), 176; Daniel Schwartz, "Searching for a New Sanctuary Movement," *Dissent Magazine* (June 25, 2010); Tom Watson, "Why #PussyRiot Is the Future of Civil Disobedience (and Not Just in Putin's Russia)," *Forbes.com* (August 17, 2012); Jennifer Welchman on ELF in "Is Ecosabotage Civil Disobedience?," *Philosophy & Geography* 4, 1 (2001): 97–107; William A. Scheuerman, "Whistleblowing as Civil

- Disobedience: The Case of Edward Snowden,” *Philosophy and Social Criticism* 40, 7 (2014): 609–628; Peter Ludlow, “Hacktivists on Trial,” *The Nation* (December 4, 2013).
2. I thank Liam Murphy for pushing me to clarify the stakes of the conceptual inquiry.
 3. See, e.g., Patrick J. Buchanan, “Kim Davis and the Rise of Right-Wing Civil Disobedience,” *The American Conservative* (September 11, 2015), <http://www.theamericanconservative.com/buchanan/kim-davis-and-the-rise-of-conservative-civil-disobedience/> (accessed January 25, 2017).
 4. Haslanger distinguishes three approaches to questions about “What is x?” In the first, “conceptual” approach, we investigate our ordinary concept of x using traditional a priori methods. In the second, “descriptive” or “naturalistic” approach, we investigate x’s extension, i.e., what people refer to when they use x. In the third, “ameliorative” or “analytic” approach, we inquire into the purpose of having x and see if we can put the concept of x to good use in a liberatory project. Sally Haslanger, *Resisting Reality: Social Construction and Social Critique* (Oxford: Oxford University Press, 2012), chap. 13.
 5. Erin Pineda, *The Awful Roar: Civil Disobedience in the Wake of the Civil Rights Movement* (manuscript in progress), chap. 1.
 6. John Rawls, *A Theory of Justice*, rev. ed. (Cambridge, MA: Harvard University Press, 1999), 320.
 7. Brownlee notes this in Brownlee, “Civil Disobedience,” *The Stanford Encyclopedia of Philosophy*, ed. Edward N. Zalta (Fall 2017 Edition), <https://plato.stanford.edu/archives/fall2017/entries/civil-disobedience/>
 8. David Lyons, “Moral Judgment, Historical Reality, and Civil Disobedience,” *Philosophy and Public Affairs* 27, 1 (1998): 31–49. My thinking in this chapter is very much indebted to David Lyons’s work.
 9. It is worth noting that the Good Friday march is the only campaign in this list that King organized, although he is often credited for these other iconic campaigns. The Congress for Racial Equality (CORE) organized the Freedom Rides and the Student Nonviolent Coordinating Committee (SNCC) organized most lunch counter sit-ins. This is part of the misrepresentation of the Black freedom struggle detailed below. King’s most famous civil rights campaign, the 1955–1956 Birmingham Bus Boycott, did not involve any lawbreaking.
 10. Again, I am following: Lyons, “Moral Judgment, Historical Reality, and Civil Disobedience.”
 11. Martin Luther King Jr., *Testament of Hope: The Essential Writings and Speeches of Martin Luther King, Jr.*, ed. James M. Washington (New York: HarperCollins, 2003 [1986]), 47.
 12. *Ibid.*, 47, 360, 429.
 13. See, e.g., Martha Nussbaum, *Anger and Forgiveness: Resentment, Generosity, Justice* (New York: Oxford University Press, 2016), chap. 7; and Brandon M.

- Terry, "MLK Now," in *Fifty Years Since MLK*, ed. Brandon M. Terry (Boston Review Forum 5, 43.1, 2017).
14. King, *Testament of Hope*, 291. Rawls understands coercion as basically synonymous with use of force: coercion is what the state does, and has monopoly over. But if one defines coercion as the use of cost-levying tactics to exert pressure, it can be compatible with civil disobedience.
 15. King, *Testament of Hope*, 348.
 16. I am grateful to William Smith for pointing me to Rawls's comments that invite a more charitable (and perhaps radical) understanding of Rawls's view on this issue, and to Robert Jubb for illuminating the problematic implications of Rawls's narrow approach.
 17. Rawls, *Theory*, 8.
 18. John Rawls, "Legal Obligation and the Duty of Fair Play," in *John Rawls: Collected Papers*, ed. Samuel Freeman (Cambridge, MA: Harvard University Press, 2001), 117–129. Drawing from Rawls's personal correspondence, Erin Pineda provides further support that this was his belief and underscores how mainstream this view was among philosophers (as among other privileged White men). See Pineda, *The Awful Roar*.
 19. Rawls, *Theory*, 310.
 20. Rawls, *Theory*, 321–322.
 21. John Rawls, *Justice as Fairness: A Restatement*, ed. Erin Kelly (Cambridge, MA: Belknap Press of Harvard University Press, 2001), 128.
 22. Social scientists refer to it as the "positive radical flank effect." Radical flank effects can be negative too. See, e.g., Herbert H. Haines, "Radical Flank Effects," *The Wiley-Blackwell Encyclopedia of Social and Political Movements* (Blackwell, 2013); and Kurt Schock, *Civil Resistance Today*, chap. 1: esp. 27–29.
 23. King, "Letter from Birmingham City Jail."
 24. Ta-Nehisi Coates, *Between the World and Me* (New York: Spiegel and Grau, 2015), 30–32. Emphasis in text.
 25. Ta-Nehisi Coates, "Nonviolence as Compliance," *The Atlantic* (April 27, 2015), <http://www.theatlantic.com/politics/archive/2015/04/nonviolence-as-compliance/391640/> (accessed September 23, 2016).
 26. Interview featured in *The Black Power Mixtape 1967–1975*, directed by Göran Olsson (IFC Films, 2011).
 27. Bernard Harcourt, "The Politics of Incivility," *Arizona Law Review* 54, 2 (2012): 345–373.
 28. 388 U.S. 307 (1967). Austin Sarat, "Keeping Civility in Its Place: Dissent, Injustice, and the Lessons of History," in *Law, Society, and Community: Socio-Legal Essays in Honour of Roger Cotterrell*, eds. Richard Nobes and David Schiff (New York: Routledge, 2016), 293–308, 294.
 29. Sarat, "Keeping Civility in Its Place," 304.
 30. Harcourt, "Politics of Incivility," 348.

31. See, in particular, Miranda Fricker, *Epistemic Injustice: Power and the Ethics of Knowing* (Oxford: Oxford University Press, 2007).
32. Brownlee, *Conscience and Conviction*, chap. 1.
33. Brownlee, "Civil Disobedience"; Brownlee, "The Civil Disobedience of Edward Snowden: A Reply to William Scheuerman," *Philosophy and Social Criticism* 42, 10 (2016): 965–970.
34. His objection assumes, problematically in some ways, an equation between conscientiousness and selflessness. See Robin Celikates, "Civil Disobedience as Practice of Civic Freedom," in *On Global Citizenship James Tully in Dialogue*, ed. David Owen (London: Bloomsbury Press, 2014), 207–228.
35. Robin Celikates, "Democratizing Civil Disobedience," *Philosophy and Social Criticism* 42, 10 (2016): 982–994, esp. 985.
36. Robin Celikates, "La désobéissance civile: entre nonviolence et violence," *Rue Descartes* 77, 1 (2013): 35–51.
37. Brownlee, *Conscience and Conviction*; Celikates, "Democratizing Civil Disobedience."
38. Brownlee, *Conscience and Conviction*, 20.
39. Robin Celikates and Daniel De Zeeuw, "Botnet Politics, Algorithmic Resistance and Hacking Society," *Hacking Habitat* (Rotterdam: nai010, 2016): 209–217, 213. I examine some other arguments for conceiving of DDoS actions and related hacktivist acts as electronic civil disobedience in "Is Hacktivism the New Civil Disobedience?" *Raisons Politiques* 69, 1 (2018): 63–81.
40. Femen, "About Us," *Femen* blog, <http://femen.org/about-us> (accessed December 10, 2016).
41. Mark Dery, "Culture Jamming: Hacking, Slashing and Sniping in the Empire of Signs," *Open Magazine Pamphlet Series* (Unknown, 1993).
42. Tony Milligan discusses various more or less radical movements that refuse to describe their methods as "civil disobedience" because of their deliberate departure from the standard conception. See Tony Milligan, *Civil Disobedience: Protest, Justification and the Law* (New York: Bloomsbury 2013).
43. Shelby, *Dark Ghettos*, 223.
44. Avia Pasternak, "Political Rioting: A Moral Assessment" (unpublished manuscript)
45. See, e.g., Young, *Justice and the Politics of Difference*; Jean Harvey, *Civilized Oppression* (Lanham, MD: Rowman and Littlefield, 1999); Ann Cudd, *Analyzing Oppression* (Oxford: Oxford University Press, 2006); Carol Hay, *Kantian, Liberalism, and Feminism: Resisting Oppression* (New York: Palgrave Macmillan, 2013).
46. See, e.g., Edward E. Baptist, *The Half Has Never Been Told: Slavery and the Making of American Capitalism* (New York: Basic Books, 2014).
47. See *O.J. Simpson: Made in America*, directed by Ezra Edelman (ESPN, 2016).

48. In case the retaliatory motive is not clear enough, "Operation: Avenge Assange" was one of a series of DDoS attacks called "Operation: Payback." See Gabriella Coleman, *Hacker, Hoaxer, Whistleblower, Spy: The Many Faces of Anonymous* (London: Verso, 2014).
49. Shelby, *Dark Ghettos*, chap. 9.
50. See Jessica Bulman-Pozen and David Pozen, "Uncivil Obedience," *Columbia Law Review* 115 (2015): 809–872. For a critique of the category of "uncivil obedience," see Daniel Markovits, "Civility, Rule-Following, and the Authority of Law," *Columbia Law Review* 116 (2016): 32–43.
51. I take terrorism to lie at the outer edge of uncivil (as well as of principled) disobedience. Other categories of unlawful resistance besides principled disobedience include revolution and criminal disobedience (among others). For instance, Shelby argues that criminal activity under conditions of material deprivation and institutional racism constitutes an intelligible response to the ghetto plight—a kind of defiance that does not necessarily express flawed character or disregard for the authority of morality. See Shelby, *Dark Ghettos*, chap. 7. On revolution in colonial contexts, see, e.g., Frantz Fanon, *The Wretched of the Earth*, trans. Richard Philcox (New York: Grove Press, 2004 [1963]). I thank Alex Gourevitch for drawing my attention to this space within resistance and besides principled disobedience.
52. John Rawls, *Political Liberalism* (New York: Columbia University Press, 1993), 217. Linda Zerilli dubs the liberal conception of civility "the method of avoidance": I prefer to call it "decorum" to emphasize the way some of its demands boil down to a matter of manners. See Linda M. G. Zerilli, "Against Civility: A Feminist Perspective," *Civility, Legality, and Justice in America*, ed. Austin Sarat (Cambridge: Cambridge University Press, 2014), 107–131.
53. See, e.g., "Colin Kaepernick Branded a 'Traitor' by NFL Executives over Anthem Protest," *The Guardian* (August 31, 2016), <https://www.theguardian.com/sport/2016/aug/31/colin-kaepernick-traitor-national-anthem-protest-nfl> (accessed October 6, 2017).

Chapter 2

1. See Alex Gourevitch, "The Right to Strike: A Radical View" (unpublished manuscript). Elizabeth Anderson's work on the tyrannical aspects of many workplaces is especially relevant here. See Elizabeth Anderson, *Private Government: How Employers Rule Our Lives (and Why We Don't Talk about It)* (Princeton, NJ: Princeton University Press, 2017).
2. David Lefkowitz, "On a Moral Right to Civil Disobedience," *Ethics* 117, 2 (2007): 202–233.

3. See, e.g., Daniel Weinstock, "How Democratic Is Civil Disobedience?," *Criminal Law and Philosophy* 10, 4 (2016): 707–720.
4. See, e.g., Carl Cohen, *Civil Disobedience: Conscience, Tactics, and the Law* (New York: Columbia University, 1971), chap. 6.
5. See Jeremy Waldron, *The Dignity of Legislation* (Cambridge: Cambridge University Press, 1999), 59–62.
6. Hannah Arendt, "Reflections on Civil Disobedience," *The New Yorker* (September 12, 1970), 70–105.
7. Ronald Dworkin, "On Not Prosecuting Civil Disobedience," *The New York Review of Books* (June 6, 1968).
8. William E. Scheuerman, "Recent Theories of Civil disobedience: An Anti-Legalistic Turn?," *The Journal of Political Philosophy* 23, 4 (2015): 427–449, 431.
9. See Daniel Markovits, "Democratic Disobedience," *The Yale Law Review* 114, 8 (2005): 1897–1952; Celikates, "Civil Disobedience as Practice of Civic Freedom"; William Smith, *Civil Disobedience and Deliberative Democracy* (Abingdon, UK: Routledge, 2013), chap. 3.
10. Cornell Clayton, "Incivility Crisis of Politics Is Just a Symptom of Division," *The Seattle Times* (October 27, 2012), http://old.seattletimes.com/html/opinion/2019534569_cornellclaytonopedxml.html.
11. Erica Chenoweth and Maria Stephan, *Why Civil Resistance Works: The Strategic Logic of Nonviolent Conflict* (New York: Columbia University Press, 2011).
12. Erica Chenoweth, "Violence Will Only Hurt the Trump Resistance," *New Republic* (February 7, 2017); Erica Chenoweth and Kurt Schock, "Do Contemporaneous Armed Challenges Affect the Outcomes of Mass Nonviolent Campaigns?," *Mobilization: An International Quarterly* 2, 4 (2015): 427–451.
13. Chenoweth and Stephan, *Why Civil Resistance Works*, 42–46.
14. Quoted in K. J. Kenafick's 1950 "Foreword" to Mikhail Bakunin, *Marxism, Freedom, and The State* (Whitefish, MT: Kessinger, 2010), 4.
15. Sabl conceives of the piecewise-just society as the best way to understand Rawls's "nearly just" society. Andrew Sabl, "Looking Forward to Justice: Rawlsian Civil Disobedience and Its Non-Rawlsian Lessons," *The Journal of Political Philosophy* 9, 3 (2001): 307–330, 311.
16. *Ibid.*, 310.
17. *Ibid.* I freely substituted King's civil rights movement to Sabl's talk of American Blacks in general in my reconstruction of his argument, since many Black activists in fact favored revolution.
18. Norman Geras, "Our Morals: The Ethics of Revolution," *The Socialist Register* 25 (1989): 185–211, 188.
19. Lisa Tessman, *Burdened Virtues: Virtue Ethics for Liberatory Struggles* (New York: Oxford University Press, 2005).

20. Aristotle, *Nicomachean Ethics*, Terence Irwin (trans.), second edition, Indianapolis, IN: Hackett Publishing, 1999.
21. Rawls, *Theory of Justice*, 5, and *Political Liberalism* (New York: Columbia University Press, 1993), xlix and 253.
22. Rawls, *Theory of Justice*, 337.
23. Pasternak, "Political Rioting."
24. Susan Bickford, "Emotion Talk and Political Judgment," *Journal of Politics* 73, 4 (2011): 1025–1037, 1032.
25. See National Poll, July 2017, available at: <http://harvardharrispoll.com/> (accessed September 5, 2017). For comparison, note that in a 1966 Gallup survey, 63 percent of Americans gave Martin Luther King Jr. a negative rating.
26. I am grateful to Juliet Hooker for pushing this objection. Charles Mills, "White Ignorance," in *Race and Epistemologies of Ignorance*, eds. N. Tuana and S. Sullivan (Albany: State University of New York Press, 2007), 21.
27. Amna A. Akbar, "On the Memory, Mechanics, and Imagination of Protest," (presentation at the APSA meeting, San Francisco, August 2017).
28. Lefkowitz, "On a Moral Right to Civil Disobedience."
29. Smith, *Civil Disobedience and Deliberative Democracy*, 85.
30. Brownlee, *Conscience and Conviction*, chaps. 5–6.
31. See Miranda Fricker, *Epistemic Injustice: Power and the Ethics of Knowing* (Oxford: Oxford University Press, 2007), 23–29 (illustrating testimonial injustice with the trial of Tom Robinson, the Black defendant in Harper Lee's *To Kill a Mockingbird*). In Fricker's view, testimonial injustice occurs when prejudice causes a hearer to give a deflated level of credibility to a speaker's word.

Chapter 3

1. The International Consortium of Investigative Journalists (ICIJ), *The Panama Papers* (April 3, 2016), <https://panamapapers.icij.org/20160403-panama-papers-global-overview.html>.
2. Le Monde, "'Paradise Papers': paradis fiscal, enfer démocratique" (November 10, 2017), http://www.lemonde.fr/evasion-fiscale/article/2017/11/10/paradise-papers-l-egalite-devant-l-impot-pilier-essentiel-du-contrat-democratique_5213081_4862750.html#u74WBQjMkzh91mJT.99.
3. Rawls, *Theory of Justice*, 308.
4. Jeremy Waldron, "Special Ties and Natural Duties," *Philosophy and Public Affairs* 22 (1993): 3–30; Smith, *Civil Disobedience and Deliberative Democracy*, chap. 1; Thomas Christiano, *The Constitution of Equality: Democratic Authority and Its Limits* (Oxford: Oxford University Press, 2008); Anna Stilz, *Liberal Loyalty: Freedom, Obligation, and the State* (Princeton, NJ: Princeton University Press, 2009); Anna Stilz, "Why Does the State Matter Morally? Political Obligation and Particularity," in *Varieties of Sovereignty and Citizenship*, eds.

- S. R. Ben-Porath and R. M. Smith (Philadelphia: University of Pennsylvania Press, 2013), 244–264; Daniel Viehoff, “Democratic Equality and Political Authority,” *Philosophy and Public Affairs* 42, 4 (2014): 337–375.
5. Stilz, “Why Does the State Matter Morally?” 257.
 6. Smith, *Civil Disobedience and Deliberative Democracy*, 29.
 7. Ibid., chap. 2.
 8. Ibid., 39–41.
 9. Ibid., 41–43.
 10. *Obergefell v. Hodges*, 135 S. Ct. 2071 (2015).
 11. The Council of State, France’s highest administrative court soon struck down these municipal bans as unconstitutional, though they remained in effect through the summer. See Conseil d’Etat statuant au contentieux, ordonnance du 26 août 2016, Ligue des droits de l’homme et autres—association de défense des droits de l’homme collectif contre l’islamophobie en France, Nos 402742, 402777.
 12. One could make an indirect case against immigration policies by showing that it violates the rights of citizens, for instance, when parents, children, and spouses are broken up by deportation orders. But the point is that immigration policies involve serious wrongs even where they do not concern citizens.
 13. See Serena Parekh, *Refugees and the Ethics of Forced Displacement* (New York: Routledge, 2016).
 14. Smith, *Civil Disobedience and Deliberative Democracy*, 68–70. This target of civil disobedience was previously conceptualized in Markovits, “Democratic Disobedience.”
 15. See Sheheryar T. Sardar and Benish A. Shah, “Social Media, Censorship, and Control: Beyond SOPA, PIPA, and the Arab Spring,” *University of Pennsylvania Journal of Law and Social Change* 15, 4 (2012): 577–585. Available at <http://scholarship.law.upenn.edu/jlasc/vol15/iss4/10>.
 16. Lawrence Lessig, *Code and Other Laws of Cyberspace* (New York: Basic Books, 1999).
 17. Bernard Harcourt, *Exposed: Desire and Disobedience in the Digital Age* (Cambridge, MA: Harvard University Press, 2015).
 18. Ethan Zuckerman, “Intermediary Censorship,” in *Access Controlled: The Shaping of Power, Rights, and Rule in Cyberspace*, eds. R. J. Deibert, J. G. Palfrey, R. Rohozinski, and J. Zittrain (Cambridge, MA: MIT Press, 2009), 71–85.
 19. Rebecca MacKinnon, *Consent of the Networked: The Worldwide Struggle for Internet Freedom* (New York: Basic Books, 2009).
 20. *U.S. v. Cruikshank* (92 U.S. 542, 1875) is a case in point. The *Cruikshank* Court overturned the convictions of two White defendants in the 1873 Colfax massacre (around 105 Blacks were killed), and put an end to the Ku Klux Klan prosecutions. Legal scholars have argued that this decision judicially constrained the Fourteenth Amendment’s equal protection principle in a manner that has not been undone. See Charles Lane, *The Day Freedom*

- Died: The Colfax Massacre, the Supreme Court, and the Betrayal of Reconstruction* (New York: Henry Holt, 2008); William J. Stuntz, *The Collapse of American Criminal Justice* (Cambridge, MA: Belknap Press of Harvard University Press, 2011).
21. David Lyons, "The Legal Entrenchment of Illegality," in *The Legacy of H. L. A. Hart: Legal, Political, and Moral Philosophy*, eds. Matthew H. Kramer, Claire Grant, Ben Colburn, and Antony Hatzistavrou (Oxford: Oxford University Press, 2008), 29–43.
 22. Bureau of Justice Statistics, *Arrest-Related Deaths Program Redesign Study, 2015–16: Preliminary Findings* (December 15, 2016), NCJ 250112: <https://www.bjs.gov/index.cfm?ty=pbdetail&iid=5864>.
 23. Mapping Police Violence, <https://mappingpoliceviolence.org/aboutthedata/> (accessed November 21, 2017).
 24. *Graham v. Connor*, 490 U.S. 386 (1989).
 25. See, e.g., John Yoo, "Memorandum for Department of Defense Re: Application of Treaties and Laws to al Qaeda and Taliban Detainees" (January 9, 2002). Draft available at <http://nsarchive.gwu.edu/NSAEBB/NSAEBB127/02.01.09.pdf>.
 26. Joseph Nye, "Corruption and Political Development: A Cost-Benefit Analysis," *American Political Science Review* 61, 2 (1967): 417–427.
 27. See Transparency International's Corruption Perceptions Index at <http://www.transparency.org/cpi2015>.
 28. Indeed I do not mean to champion transparency in all domains of government and at all costs. For a nuanced, empirically informed discussion of the issues of secrecy, transparency, and democratic accountability, see Rahul Sagar, *Secrets and Leaks: The Dilemma of State Secrecy* (Princeton, NJ: Princeton University Press, 2013); and Michael P. Colaresi, *Democracy Declassified: The Secrecy Dilemma in National Security* (Oxford: Oxford University Press, 2014).
 29. Jon Swaine and Luke Harding, "Trump Commerce Secretary's Business Links with Putin Family Laid Out in Leaked Files," *The Guardian* (November 5, 2017), <https://www.theguardian.com/news/2017/nov/05/trump-commerce-secretary-wilbur-ross-business-links-putin-family-paradise-papers> (accessed November 24, 2017).
 30. Liam Murphy, "The Case of Required Rescue: Beneficence, Law and Liberty," *Georgetown Law Review* (2001): 647.
 31. Viehoff, "Democratic Equality and Political Authority." The article first shows why common duty of justice-based arguments for the duty to obey democratically made law fail.
 32. *Ibid.*, 352–359.
 33. He proposes the following test: "To determine whether disobedience is justifiable, we must, in the first instance, ask not how disobeying in any particular instance will advance justice, but rather whether a general moral rule of

- disobeying under certain circumstances will advance justice sufficiently to make up for the threat this poses to relational equality." Ibid., 374.
34. Ibid. 352.
 35. See, e.g., Eli Pariser, *The Filter Bubble: What the Internet Is Hiding from You* (New York: Penguin, 2011); and Jessica Clark and Tracy Van Slyke, *Beyond the Echo Chamber: Reshaping Politics through Networked Progressive Media* (New York: The New Press, 2010).
 36. Wikipedia contributors, "Protests against SOPA and PIPA," *Wikipedia, The Free Encyclopedia*, https://en.wikipedia.org/w/index.php?title=Protests_against_SOPA_and_PIPA&oldid=760306719 (accessed February 12, 2017).
 37. Robin Celikates, "Digital Publics, Digital Contestations," in *Transformations of Democracy*, eds. R. Celikates, R. Kreide, and T. Wesche (Lanham, MD: Rowman and Littlefield, 2015), chap. 8.
 38. As a caveat, note that Swartz's lawyers, MIT itself, and prominent intellectuals like Lawrence Lessig, have argued that Swartz did not in fact violate any law. See, e.g., Lawrence Lessig, "Aaron's Laws—Law and Justice in a Digital Age," public talk (2013), available at <http://www.youtube.com/watch?v=9HAW1i4gOU4>.
 39. Jose Antonio Vargas, "My Life as an Undocumented Immigrant," *New York Times* online (June 22, 2011), <http://www.nytimes.com/2011/06/26/magazine/my-life-as-an-undocumented-immigrant.html?ref=magazine>. A version of this article appeared in print in the *Sunday Times Magazine* on June 26, 2011.
 40. See, e.g., Carmen Fishwick, "Why We Wear the Burkini: Five Women on Dressing Modestly at the Beach," *The Guardian* (August 31, 2016); Margaux Mazellier, "Interdiction du burkini: paroles de musulmanes" *RFI* (August 19, 2016, last modified August 24, 2016); Asma Fares, "Touche pas à mon burkini!" (August 5, 2016), available at <https://www.youtube.com/watch?v=lpjSZJDY8Pw> (accessed February 13, 2017).
 41. See economic effects on small businesses, including LGBTQ shops, in Asheville, North Carolina: https://www.washingtonpost.com/lifestyle/style/how-north-carolinas-idyllic-hipster-haven-is-being-hurt-by-the-bathroom-bill-boycott/2016/06/28/28fc707a-33d4-11e6-8758-d58e76e11b12_story.html.
 42. On the movement, see Susan Bibler Coutin, *The Culture of Protest: Religious Activism and the U.S. Sanctuary Movement* (Boulder, CO: Westview Press, 1993).
 43. See especially Arizona SB 1070 (2010) and Alabama's HB 56 (AL Act 2011-535). The Department of Justice and a coalition of groups including the American Civil Liberties Union filed successful legal challenges to the most pernicious provisions of these laws, such as the criminalization of assisting, caring for, or renting to undocumented people. However, the laws have remained on the books, with key provisions still in effect. For instance, the "Papers, Please" provision makes it a crime to fail to carry registration papers

- and compels officers to question the immigration status of, and arrest without a warrant, those they suspect are in the country illegally. HB 56 even includes a provision empowering citizens to sue individual officers shirking their enforcement duties.
44. Javier Hidalgo, who has recently propounded an argument of this form, though without appealing to the duty of justice, greatly influenced my thinking here. Javier S. Hidalgo, "The Duty to Disobey Immigration Law," *Moral Philosophy & Politics* 3, 2 (2016): 165–186.
 45. See Prentice Earl Sanders and Ben Cohen, *The Zebra Murders: A Season of Killing, Racial Madness and Civil Rights* (New York: Arcade Publishing, 2011).
 46. On the movement, see Lance Hill, *The Deacons for Defense: Armed Resistance and the Civil Rights Movement* (Chapel Hill: University of North Carolina Press, 2006).
 47. Malcolm X, "The Ballot or the Bullet," speech delivered on April 3, 1964, at Cory Methodist Church in Cleveland, Ohio. Part of Malcolm X's point here is also to defend Blacks' access to guns under the Second Amendment of the U.S. Constitution.
 48. One participant boasted on an internet relay chat, "We have probably done some million pound of dmg (damage) to mc (MasterCard)." PayPal alleged that the attack cost the company £3.5 million. The Ministry of Sound estimated the cost of the attack on the four sites they operate that were targeted as being £9,000, while the IFPI's costs were more than £20,000 and the BPI's more than £4,000. MasterCard and Visa did not disclose the financial impact. Lauren Turner, "Anonymous Hackers Jailed for DDoS Attacks on Visa, MasterCard, and Paypal," *The Independent* (January 24, 2013), <http://www.independent.co.uk/news/uk/crime/anonymous-hackers-jailed-for-ddos-attacks-on-visa-mastercard-and-paypal-8465791.html>.
 49. I articulate an account of the presumptive wrongfulness of government whistleblowing and the conditions under which it can be justified in: Candice Delmas, "The Ethics of Government Whistleblowing," *Social Theory and Practice* 41, 1 (2015): 77–105.
 50. Hillary Clinton, among many other politicians and pundits, suggested Snowden was disloyal. See <https://www.theatlantic.com/politics/archive/2014/04/hillary-clinton-edward-snowdens-leaks-helped-terrorists/455586/>. American investigative journalist Edward Jay Epstein lays out the case that Snowden was a spy for Russia in his *How America Lost Its Secrets: Edward Snowden, the Man and the Theft* (New York: Alfred A. Knopf, 2017).
 51. In fact, Buchanan even shows that promoting the cause of justice does not require giving priority to domestic law. Allen Buchanan, *Justice, Legitimacy, and Self-Determination: Moral Foundations for International Law* (Oxford: Oxford University Press, 2004), 85–98.

52. See, e.g., Kevin Davis and Stephen Choi, "Foreign Affairs and Enforcement of the Foreign Corrupt Practices Act," *Journal of Empirical Legal Studies* 11, 3 (2014): 409–445
53. Jeremy Waldron, in conversation with Kevin Davis, New York University Colloquium in Social, Legal, and Political Philosophy, October 8, 2016.

Chapter 4

1. H. L. A. Hart, "Are There Any Natural Rights?," *Philosophical Review* 64, 2 (1955): 175–191; George Klosko, *The Principle of Fairness and Political Obligation* (Lanham, MD: Rowman and Littlefield, 1992); and John Rawls, "Legal Obligation and the Duty of Fair Play," in *John Rawls: Collected Papers*, ed. Samuel Freeman (Cambridge, MA: Harvard University Press, 2001): 117–129. The fair play defense of political obligations also appears in Garrett Cullity, "Moral Free Riding," *Philosophy and Public Affairs* 24, 1 (1995): 3–34; Richard Dagger, "Membership, Fair Play and Political Obligation," *Political Studies* 48, 1 (2000): 104–117; Norman Davis, "Nozick's Argument for the Legitimacy of the Welfare State," *Ethics* 97, 3 (1987): 576–594; David Lefkowitz, "The Nature of Fairness and Political Obligation: A Response to Carr," *Social Theory and Practice* 30, 1 (2004): 1–31; and Massimo Renzo, "Fairness, Self-Deception and Political Obligation," *Philosophical Studies* 169, 3 (2013): 467–488.
2. Young, *Justice and the Politics of Difference*, 49.
3. For an analysis of these dual facets, see G. A. Cohen, "The Structure of Proletarian Unfreedom," *Philosophy and Public Affairs* 12, 1 (1983): 3–33.
4. Ann E. Cudd, "Wanting Freedom," *Journal of Social Philosophy* 43, 4 (2012): 367–385.
5. Robert Dahl, *Polyarchy* (New Haven, CT: Yale University Press, 1971), 28–29, 93–94.
6. Cullity, "Moral Free Riding," 28.
7. Ibid., 22.
8. See, e.g., Marc Fleurbaey, "The Facets of Exploitation," *Journal of Theoretical Politics* 26, 4 (2014): 653–676.
9. Robert Mayer, "What's Wrong with Exploitation?," *Journal of Applied Philosophy* 24, 2 (2007): 137–150.
10. Avia Pasternak, "Voluntary Benefits from Wrongdoing," *Journal of Applied Philosophy* 31, 4 (2014): 377–391, 379.
11. Axel Gosseries characterizes beneficiaries of wrongdoing as "morally objectionable free riders": they enjoy the fruits of an activity that imposed costs on others, without themselves sharing in these costs. See Axel Gosseries, "Historical Emissions," *Ethical Perspectives* 11, 1 (2004): 36–60, 43. I think it is more apt to characterize beneficiaries of injustice as *morally analogous*

- to free-riders, than as free-riders simpliciter, though nothing hinges on the distinction.
12. Simone de Beauvoir, *The Second Sex*, trans. H. M. Parshley (New York: Random House, [1952] 1972), xxx.
 13. See, e.g., Mab Segrest, *Memoir of a Race Traitor* (Cambridge, MA: South End Press, 1999).
 14. King, "Letter."
 15. See Isabel Wilkerson, *The Warmth of Other Suns* (New York: Random House, 2010); and James N. Gregory, *The Southern Diaspora: How the Great Migrations of Black and White Southerners Transformed America* (Chapel Hill: University of North Carolina Press, 2005). Whites' motives for emigrating were mainly economic and not related to the injustice of Jim Crow.
 16. See John Locke, *Second Treatise of Government*, ed. C. B. Macpherson (Indianapolis, IN: Hackett, 1980 [1690]), § 119; David Hume, "Of the Original Contract," in *Essays: Moral, Political, and Literary*, Vol. 1, ed. E. F. Miller (Indianapolis, IN: Liberty Classics: 1985 [1752]), 443–460.
 17. Robert Goodin, "Disgorging the Fruits of Historical Wrongdoing," *American Political Science Review* 107, 3 (2013): 478–491.
 18. See Karl Marx and Friedrich Engels, "Manifesto of the Communist Party," in *The Marx-Engels Reader*, ed. Robert C. Tucker (New York: W. W. Norton, 1978 [1848]), 473–500. For a recent, liberal version of this argument, see Liam D. Murphy and Thomas Nagel, *The Myth of Ownership: Taxes and Justice* (New York: Oxford University Press, 2002).
 19. Thomas Hill Jr., "The Message of Affirmative Action," *Social Philosophy and Policy* 8, 2 (1991): 108–129.
 20. *Ibid.*, 108.
 21. See Jean Harvey, "Victims, Resistance, and Civilized Oppression," *Journal of Social Philosophy* 41, 1 (2010): 13–27, 15–16.
 22. See especially Chenoweth and Stephan, *Why Civil Resistance Works*; Daniel Q. Gillion. *The Political Power of Protest: Minority Activism and Shifts in Public Policy* (Cambridge: Cambridge University Press, 2013).
 23. Alex Gourevitch, "Strikes, Force, and Resistance to Oppression" (unpublished ms.).
 24. Avery Kolers, "The Priority of Solidarity to Justice," *Journal of Applied Philosophy* 31, 4 (2014): 420–433, 426–427.
 25. Mia McKenzie, "8 Ways Not to Be an 'Ally': A Non-Comprehensive List," *BGD* blog (June 17, 2013), <http://www.Blackgirldangerous.org/2013/06/20136178-ways-not-to-be-an-ally/> (accessed January 15, 2017).
 26. Kolers, "The Priority of Solidarity to Justice," 429.
 27. These estimates are from the Tuskegee Institute and err on the conservative side. See "1959 Tuskegee Institute Lynch Report," *Montgomery Advertiser* (April 26, 1959).

Chapter 5

1. <https://www.facebook.com/events/1640071269598406> (accessed December 5, 2017).
2. See, e.g., Human Rights Watch Report, “Everyone Blames Me”: Barriers to Justice and Support Services for Sexual Assault Survivors in India (November 8, 2017), available at <https://www.hrw.org/report/2017/11/08/everyone-blames-me/barriers-justice-and-support-services-sexual-assault-survivors> (accessed December 5, 2017).
3. BuzzFeed, https://www.buzzfeed.com/andreborges/hundreds-of-women-around-india-are-sleeping-in-parks-to-recl?utm_term=.tgLdRgXdr#.tf1B1l4BL (accessed December 5, 2017).
4. We can distinguish two Samaritan duties: the duty to rescue and the duty to aid people in dire need. The distinction is a matter of degree: it is the difference between being caught in a house on fire and being left without a home after the fire has been put down. I refer to *the Samaritan duty* throughout the chapter.
5. For the issue of legal enforcement, which I will not address, see Ernest J. Weinrib, “The Case for a Duty of Rescue,” *The Yale Law Journal* 90, 2 (1980): 247–293; Robert J. Lipkin, “Beyond Good Samaritans and Moral Monsters: An Individualistic Justification of the General Legal Duty to Rescue,” *UCLA Law Review* 31 (1983): 252–290; Liam Murphy, “Beneficence, Law, and Liberty: The Case of Required Rescue,” *Georgetown Law Journal* 89, 3 (2001): 605–665.
6. Joel Feinberg, *Harm to Others* (New York: Oxford University Press, 1984), 171.
7. Peter Unger, *Living High and Letting Die: Our Illusion of Innocence* (Oxford: Oxford University Press, 1996), chap. 2. Feinberg thinks that, cast as a duty of beneficence, the case for the legal enforcement of the duty of rescue would be harder to make. Murphy shows that this assumption is misguided. See Murphy, “Beneficence, Law, and Liberty.” I do not need to take a side in the debate, since I do not defend the enforceability of Samaritan political obligations in the face of injustice.
8. This basic account synthesizes the following sources: Maimonides, *Mishneh torah—The book of torts*, ed. H. Klein (New Haven, CT: Yale University Press, 1954 [1180]), 1:14; Luke 10:30–37; Christopher Heath Wellman and A. John Simmons, eds., *Is There a Duty to Obey the Law?* Joel Feinberg, “Offense to Others: The Moral Limits of the Criminal Law,” *Philosophical Review* 98, 2 (1989): 239–242; Cécile Fabre, “Mandatory Rescue Killings,” *Journal of Political Philosophy* 15, 4 (2007): 363–384.
9. Cécile Fabre, “Good Samaritanism: A Matter of Justice,” *Critical Review of International Social and Political Philosophy* 5, 4 (2002): 128–144.
10. See Christopher H. Wellman, “Liberalism, Samaritanism, and Political Legitimacy,” *Philosophy and Public Affairs* 25, 3 (1996): 211–237; “Toward a Liberal Theory of Political Obligation,” *Ethics* 111, 4 (2001): 735–759;

- Christopher H. Wellman, "Samaritanism and the Duty to Obey the Law," in *Is There a Duty to Obey the Law?*, 3–90. Other champions include Dudley Knowles, "Good Samaritans and Good Government," *Proceedings of the Aristotelian Society* 112, 2 (2012): 161–178.
11. Wellman, *Is There a Duty to Obey the Law?*, 19, emphasizes in the original. Wellman denies the paternalistic claim that the state is justified in coercing its constituents because it ultimately benefits each of them.
 12. *Ibid.*, 33.
 13. *Ibid.*, 86.
 14. The defense is recognized in the United States as part of common law and most states' statutory law. For an overview of the necessity defense, see, e.g., Laurie Levenson, "Criminal Law: The Necessity Defense," *National Law Journal* (1999). For a discussion of the rationales behind the necessity defense, see Brownlee, *Conscience and Conviction*, 181–184.
 15. Douglass adds that the law "bribes the judge who tries them," since judges would get \$10 for every victim they consigned to slavery and \$5 for those they set free. Frederick Douglass, "What to the Slave Is the Fourth of July?," in *Frederick Douglass: Selected Speeches and Writings*, ed. Philip S. Foner (Chicago: Lawrence Hill, 1999), 188–206.
 16. Groupe d'Information et de soutien des immigré-e-s, "Si la solidarité devient un délit, nous demandons à être poursuivis pour ce délit!," <http://www.gisti.org/spip.php?article1404> (accessed November 20, 2016).
 17. Michelle Alexander has famously dubbed it the "new Jim Crow." She attributes increased incarceration rates, and its adverse impact on Black and Brown people, to the failed War on Drugs, draconian sentencing laws, racist profiling, and increasing reliance on private prisons. See Michelle Alexander, *The New Jim Crow: Mass Incarceration in the Age of Color Blindness* (New York: The New Press, 2010). Theorists have recently pushed back against Alexander's account. According to Marie Gottschalk, drug laws and law enforcement practices by themselves are insufficient to explain mass incarceration, since drug offenders comprise only 20 percent of offenders in state prisons, while violent offenders comprise about half. See Marie Gottschalk, *Caught: The Prison State and the Lockdown of American Politics* (Princeton, NJ: Princeton University Press, 2015). According to John Pfaff, the single most important factor that explains mass incarceration is the major shift in prosecutor behavior that occurred in the mid-1990s, when prosecutors began bringing felony charges against arrestees about twice as often as they had before. See John Pfaff, *Locked In: The True Causes of Mass Incarceration—and How to Achieve Real Reform* (New York: Basic Books, 2017).
 18. Peter Wagner and Bernadette Rabuy, "Mass Incarceration: The Whole Pie 2017," Prison Policy Initiative, March 14, 2017, <https://www.prisonpolicy.org/reports/pie2017.html> (accessed September 14, 2017).

19. *Brown v. Plata* 131 S. Ct. 1910 (2011). See also William J. Newman and Charles L. Scott, "Brown v. Plata: Prison Overcrowding in California," *Journal of the American Academy of Psychiatry and the Law* 40, 4 (2012): 547–552.
20. See David Kaiser and Lovisa Stannow, "Prison Rape and the Government," *The New York Review of Books* (March 24, 2011).
21. See Bruce Arrigo and Jennifer Bullock, "The Psychological Effects of Confinement on Prisoners in Supermax Units: Reviewing What We Know and Recommending What Should Change," *International Journal of Offender Therapy and Comparative Criminology* 52, 6 (2008): 622–640.
22. Geoffrey Canada, *Fist Stick Knife Gun: A Personal History of Violence* (Boston: Beacon Press, 1995); Coates, *Between the World and Me*; see also Carolyn E. Cutrona, Gail Wallace, and Kristin A. Wesner, "Neighborhood Characteristics and Depression: An Examination of Stress Processes," *Current Directions in Psychological Science* 15, 4 (2006): 188–192.
23. See Kimberlé Williams Crenshaw and Andrea J. Ritchie, "Say Her Name: Resisting Police Brutality against Black Women" (July 2015). An interactive website, Mapping Police Violence, displays the photographs, stories, and legal disposition of the Black people killed by police since 2015: <https://mappingpoliceviolence.org/>. Another site, The Counted, maintained by *The Guardian*, counts the number of people killed by police and other law enforcement agencies in the United States throughout 2015 and 2016, monitors their demographics, and tells the stories of how they died. See <https://www.theguardian.com/us-news/ng-interactive/2015/jun/01/the-counted-police-killings-us-database> (last accessed February 14, 2017).
24. Report of the U.S. Department of Justice Civil Rights Division, "Investigation of the Baltimore City Police Department" (August 10, 2016), available at <https://www.justice.gov/opa/file/883366/download>.
25. This is a conservative estimate, cited in <https://www.rainn.org/statistics/scope-problem>. Others find that a rape occurs every two minutes: <http://www.wcsap.org/how-often-does-it-happen>.
26. See <http://www.whitehouse.gov/the-press-office/remarks-president-signing-tribal-law-and-order-act>.
27. That figure is probably underestimated given the low rates of report. See Amnesty International's report "Maze of Injustice: The Failure to Protect Indigenous Women from Violence," available at <http://www.amnesty.org/en/library/asset/AMR51/035/2007/en/ce2336a3-d3ad-11dd-a329-2f46302a8cc6/amr510352007en.html>.
28. See, e.g., Tuesday Reitano, Laura Adal, and Mark Shaw, "Smuggled Futures: The Dangerous Path of the Migrant from Africa to Europe," *The Global Initiative Against Transnational Organized Crime*, Geneva, last modified May 7, 2014, <http://globalinitiative.net/smuggled-futures/> (accessed June 22, 2016).
29. See, e.g., Paul Dourgnon and Kassene Kassar, "Refugees In and Out of North Africa: A Study of the Choucha Refugee Camp in Tunisia," *European Journal*

- of *Public Health* 24, Supplement 1 (2014): 6–10; Thomas M. Crea, Rocio Calvo, and Maryanne Loughry, “Refugee Health and Wellbeing: Differences between Urban and Camp-Based Environments in Sub-Saharan Africa,” *Journal of Refugee Studies* 28, 3 (2015): 319–330. See also Phoebe Weston, “Inside Zaatarī Refugee Camp: The Fourth Largest City in Jordan,” *The Telegraph* (August 5, 2015), <http://www.telegraph.co.uk/news/worldnews/middleeast/jordan/11782770/What-is-life-like-inside-the-largest-Syrian-refugee-camp-Zaatarī-in-Jordan.html> (accessed January 5, 2017); and Abu Amar, “Our Life in the Zaatarī Refugee Camp: No Electricity, No Space to Sleep, No Escape,” *The Guardian* (September 14, 2015), <https://www.theguardian.com/commentisfree/2015/sep/14/life-refugee-camp-syrian-family-jordan-escape> (accessed January 5, 2017).
30. See, e.g., Amnesty International’s reports on Uganda: <https://www.amnesty.org/en/latest/news/2016/08/uganda-minister-remarks-against-lgbt-people-amount-to-advocacy-of-hatred/>, and Jamaica: <https://www.amnesty.org/en/countries/americas/jamaica/report-jamaica/> (accessed December 15, 2016).
 31. Kidnapping statistics are unreliable, with an estimated 80 percent of cases never officially reported, due to police corruption. However, it is estimated that, in absolute numbers, Mexico has been the world’s kidnapping capital since 2005, followed closely by Nigeria and Colombia. See Simeon Tegel, “Wealthy Mexicans Turn to Tracking Devices as Kidnap Rate Soars,” *The Independent* (August 22, 2011), <http://www.independent.co.uk/news/world/americas/wealthy-mexicans-turn-to-tracking-devices-as-kidnap-rate-soars-2342174.html> (accessed November 1, 2016). One may object to my characterization that their vulnerability results from an unjust war on drugs, and so that they are in fact in persistent Samaritan peril.
 32. See, e.g., <http://www.interventionanddeescalation.com/resources.html>; <https://watt.cashmusic.org/writing/deescalation>; and Alyssa Hernandez, “Bystander Intervention,” online video, <https://www.youtube.com/channel/UC69feU1j6NL5eTXyxRV0v8w> (accessed February 5, 2017).
 33. Feinberg, *Harm to Others*, 171.
 34. Charles Mills, *The Racial Contract* (Ithaca, NY: Cornell University Press, 1997).
 35. Elizabeth Anderson, *The Imperative of Integration* (Princeton, NJ: Princeton University Press, 2010).
 36. Simmons, “The Duty to Obey and Our Natural Moral Duties,” 184.
 37. Peter Singer, “Famine, Affluence, and Morality,” *Philosophy & Public Affairs* 1, 1 (1972): 229–243.
 38. Equal Justice Initiative, “Lynching in America: Confronting the Legacy of Racial Terror,” 2nd ed., (2015), <http://eji.org/sites/default/files/lynching-in-america-second-edition-summary.pdf> (accessed November 15, 2016).

39. See <http://www.alslegal.org> and <http://www.indianlaw.org>.
40. See Amnesty, "Maze of Injustice."
41. Louise Erdrich, *The Round House* (New York: HarperCollins, 2012).
42. See <http://www.whitehouse.gov/the-press-office/remarks-president-signing-tribal-law-and-order-act>.
43. For a discussion of the negative and dehumanizing stereotypes of Native Americans in general, and indigenous women in particular, see Amnesty, "Maze of Injustice."
44. Peter A. Leavitt, Rebecca Covarrubias, Yvonne A. Perez, and Stephanie A. Fryberg, "'Frozen in Time': The Impact of Native American Media Representations on Identity and Self-Understanding," *Journal of Social Issues* 71, 1 (2015): 39–53.
45. See Human Rights Watch Report, "Everyone Blames Me."
46. See Lolly Bowean, "Protesters Chain Themselves Together in Front of Chicago Police Station," *Chicago Tribune* (July 21, 2016): <http://www.chicagotribune.com/news/local/breaking/ct-Black-lives-matter-march-lawndale-police-strategies-20160720-story.html> (accessed February 15, 2017).
47. See, e.g., *United States v. Hill*, 893 F Supp 1044, 1048 (ND Fla 1994), *Zal v. Steppe*, 968 F2d 924, 929 (9th Cir. 1992), and *Northeast Women's Center v. McMonagle*, 868 F2d 1342, 1350–52 (3d Cir. 1989). Courts generally emphasize the legal alternatives available to abortion protesters. 971 F.2d 193 (9th Cir.) *cert. denied*, 112 S. Ct. 2980 (1992).
48. See Jennifer Jefferis, *Armed for Life: The Army of God and Anti-Abortion Terror in the United States* (Westport, CT: Praeger, 2011).
49. Judith Jarvis Thomson, "A Defense of Abortion," *Philosophy and Public Affairs* 1, 1 (1971): 47–66.
50. Knowles, "Good Samaritans and Good Government."
51. See "Lives in Peril: How Ineffective Inspections Make ICE Complicit in Detention Center Abuse," *Immigration Detention Transparency and Human Rights Project*, <http://immigrantjustice.org/lives-peril-how-ineffective-inspections-make-ice-licit-detention-center-abuse-0> Proceedings of the Aristotelian Society 112, 2 (2012): 161–178. (accessed September 25, 2016).
52. Ibid.; Sibylla Brodzinsky and Ed Pilkington, "US Government Deporting Central American Migrants to Their Deaths," *The Guardian* (October 12, 2015), <https://www.theguardian.com/us-news/2015/oct/12/obama-immigration-deportations-central-america> (accessed September 18, 2017); and Amnesty International, "Home Sweet Home? Honduras, Guatemala, and El Salvador's Role in a Deepening Refugee Crisis" (2016), https://www.amnestyusa.org/files/central_american_refugees_-_report_eng_1-min.pdf (accessed September 18, 2017).
53. Colson Whitehead, *The Underground Railroad* (New York: Random House, 2016).

54. Samuel P. Oliner and Pearl M. Oliner, *The Altruistic Personality: Rescuers of Jews in Nazi Europe* (New York: Macmillan, 1988).
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Chapter 6

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Chapter 7

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Conclusion

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Postscript

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